

Tentative Rulings

July 14, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

19. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion for Summary Judgment Against All Occupants
7/14/26, 9:00 a.m., Dept. S-17

The Court is inclined to **CONTINUE** so that movant can supplement and provide all the exhibits referenced – but not included – in the DeVonne declaration. Movant must also file the underlying Proof of Service (POS).

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

On June 6, 2026, Plaintiff sought to amend the judgment by *ex parte* to add “All Occupants,” stating that the POS on All Occupants was inadvertently not filed with the Court. On June 11, 2026, the Court denied that *ex parte* application but stated Plaintiff could bring a motion for summary judgment. This motion followed.

The motion will need to be continued because the documents that Plaintiff purports to attach – that purportedly demonstrate service on All Occupants and show compliance with Code of Civil Procedure sections 415.46 and 1174.25 related to serving occupants with a Prejudgment Claim of Right of Possession – are not attached to the DeVonne declaration.

At the very least, the Court would need:

- Exhibit A – Prejudgment Claim of Right to Possession;
- Exhibit C – Proof of Service reflecting service pursuant to the Court’s posting order; and
- Exhibit D – Proof of Service on All Occupants executed by the registered California process server.

It also is unclear why the POS of Summons on All Occupants reflecting service of the summons, complaint, and Prejudgment Claim of Right to Possession has not been separately filed with the Court.
